

FEDERAL MARITIME COMMISSION

MARIE S. CAREW d/b/a HOLIDAY
SHIPPING,

Complainant,

-against-

MAERSK LINE A/S and JOHN DOES,

Respondents.

Docket No. 20-17

MEMORANDUM OF LAW
IN SUPPORT OF MOTION

Garth S. Wolfson

Of Counsel

MAHONEY & KEANE, LLP
Attorneys for Respondent
MAERSK LINE A/S
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STATEMENT OF FACTS AND PROCEDURAL HISTORY

Plaintiff, MAERSK LINE A/S, as Carrier, and Defendant, MARIE S. CAREW d/b/a HOLIDAY SHIPPING HOLIDAY (“HOLIDAY”), as Shipper, entered into and were parties to 79 port-to-port “**NON-NEGOTABLE**” sea way bills for the ocean carriage of containerized cargoes from the United States to various African ports, all subject to MAERSK’s Terms for Carriage. (Exhibits A-C to Wolfson Declaration).

As in the overwhelming majority of ocean bills of lading, HOLIDAY, as the Shipper and Merchant, was solely responsible for clearing its cargoes through Customs and was required to compensate MAERSK for the freight, demurrage, port fees, and associated charges incurred in connection with the shipments. See, Exhibit C to Wolfson Declaration, at ¶ 15 (“The Merchant shall comply with all regulations or requirements of customs, port and other authorities, and shall bear and pay all duties, taxes, fines, imposts, expenses or losses . . . incurred or suffered by reason of any failure to so comply, or by reason of any illegal, incorrect or insufficient declaration, marking, numbering or addressing of the Goods, and shall indemnify the Carrier in respect thereof.”); id. at ¶ 16 (“All sums payable to the Carrier are due on demand . . . [T]he Merchant shall remain responsible for the payment of such Freight, duties, fees, demurrage/detention and costs and expenses on receipt of evidence of demand.”).

MAERSK completed the transportation of HOLIDAY’s cargoes, which were all delivered without complaint, and duly invoiced HOLIDAY for unpaid basic ocean freight, detention, demurrage, per diem charges, inland haulage, low Sulphur surcharges, congestion fees, shifting expenses, bunker fees, port dues, documentation fees, and associated and incidental customs duties, fees, taxes, costs, charges, and expenses accrued on the containers. See, generally, Exhibit B to Wolfson Declaration. However, since HOLIDAY failed, despite repeated demands, to pay the

outstanding charges all due and owing, on May 24, 2019, MAERSK commenced suit against HOLIDAY in the United States District Court for the Southern District of New York¹ (“SDNY Action”) alleging breach of the 79 contracts of carriage and damages totaling \$173,025.74, exclusive of interest, costs, and fees. Id.

Near the inception of the SDNY Action, MAERSK and HOLIDAY, assisted by the same counsel as in the instant proceeding, were then permitted to bring dispositive motions, with HOLIDAY’s asserting, in part, that the SDNY Action should be dismissed in favor of FMC jurisdiction. (Exhibit D to Wolfson Declaration). But, by Order dated July 27, 2020, both motions were denied, without prejudice to renew. Id.

Nonetheless, by Complaint dated October 9, 2020, HOLIDAY thereafter commenced the FMC proceeding sub judice, alleging that MAERSK acted wrongfully in charging HOLIDAY for demurrage during periods when HOLIDAY’s cargoes were being held by Customs and Border Patrol. (Exhibit A, at ¶¶ 8-11) (“Each of these days, for which Respondent charges demurrage, the consignment was with the Department of Customs and Border Patrol.”). All four of the bills of lading at issue in the present FMC case, to wit: those numbered 965477262, 96544009, 965751148, and 965885829, are also included among the 79 bills of lading previously placed in suit by MAERSK for the very same charges. Compare Exhibit A to Wolfson Declaration, ¶¶ 8-11 with Exhibit B to Wolfson Declaration, at ¶ 7. There are no allegations that MAERSK’s demurrage rates were improper, and there are no allegations that MAERSK’s conduct in any way caused or contributed to the actions of Customs and Border Patrol in delaying the release of HOLIDAY’s cargoes.

¹ The Law and Jurisdiction clause of the bill of lading provided that, “[f]or shipments to or from the U.S. any dispute shall be governed by U.S. law and the United States District Court for the Southern District of New York is to have exclusive jurisdiction to hear all disputes in respect thereof.” (Exhibit C to Wolfson Declaration, at ¶ 26).

(Exhibit A to Wolfson Declaration). Rather, HOLIDAY appears to merely allege that the altogether common and accepted practice of billing for demurrage during such periods was somehow per se “unreasonable and punitive” and violative of the Shipping Act. See, Exhibit A to Wolfson Declaration, at ¶¶ 12-13.

While MAERSK fully believes HOLIDAY’s allegations of improper conduct are plainly misplaced on the law and completely without merit, strictly without prejudice and for purely economic reasons, to wit, to avoid the legal expense of engaging with HOLIDAY in this FMC proceeding, MAERSK then agreed to voluntarily dismiss MAERSK’s claims in the SDNY action concerning all four of the bills lading now brought before the FMC in this case. See, Exhibit E to Wolfson Application. However, HOLIDAY has inexplicably refused to consent, which constrained MAERSK to then approach the Court for leave, as required pursuant to Rule 15 of the Federal Rules of Civil Procedure. Id. That application is now pending, and the parties are due to address the matter on December 11, 2020 before Judge Cronan. (Exhibit F to Wolfson Declaration). As no conceivable reason to prevent MAERSK from reducing its ad damnum has or can be expected to be presented, MAERSK anticipates the Court will readily allow the amendment, accordingly.

ARGUMENT

PRELIMINARY STATEMENT.

“Judgment on the pleadings is appropriate where material facts are undisputed and where a judgment on the merits is possible merely by considering the contents of the pleadings.” Federal Ins. Co. v. M/V “Ville D’Aquarius”, No. 08 Civ. 8997 (PKC), 2009 WL 3398266, *3, 2012 A.M.C. 1334 (S.D.N.Y. Oct. 20, 2009) (quoting Sellers v. M.C. Floor Crafters Inc., 842 F.2d 639, 642 (2d Cir. 1988)); see also, Fed. R. Civ. P. 12(c). Moreover, “the tenet that a court must accept as true all of the allegations contained in the complaint is inapplicable to legal conclusions. Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice.” Atlantic Int’l Movers, LLC v. Ocean World Lines, Inc., No. 12 Civ. 2464 (SJF), 2012 WL 6200449, *2 (E.D.N.Y. Dec. 11, 2012) (quoting Ashcroft v. Iqbal, 556 U.S. 662, 678, 129 S. Ct. 1937, 173 L. Ed. 2d 868 (2009)).

And, in this regard, a complainant attempting to avoid judgment on the pleadings cannot remove from consideration the terms and provisions of the governing contract asserted in the complaint. See, Hartford Fire Ins. Co. v. Novocargo USA Inc., 156 F. Supp. 372 (S.D.N.Y. 2001) (“This Court may consider the applicable bills of lading and contractual agreements executed among the parties because they are referenced in the complaint and relied on by the parties in filing their various actions.”) (citing Asoma v. M/V Southgate, No. 98 Civ. 7407 (CSH), 1999 WL 1115190, *1 (S.D.N.Y. Dec. 7, 1999)); New York Marine & Gen. Ins. Co. v. M/V Admiralengracht, No. 97 Civ. 7402 (JGK), 1999 WL 353628, *1, 1999 A.M.C. 1647 (S.D.N.Y. Apr. 28, 1999) (“In deciding the motion, the Court can consider documents referenced in the complaint and documents that are in plaintiff’s possession or that plaintiff knew of and relied on in bringing suit.”) (citing Brass v. American Film Technologies, Inc., 987 F.2d 142, 150 (2d Cir. 1993); Cortec Indus., Inc. v. Sum

Holding L.P., 949 F.2d 42, 47-48 (2d Cir. 1991), cert denied, 503 U.S. 960 (1992); I. Meyer Pincus & Assoc., P.C. v. Oppenheimer & Co., 936 F. Supp. 206, 20-8 (S.D.N.Y. 1997)).

In light of the above, MAERSK respectfully submits that HOLIDAY's Complaint should be dismissed on any one of the following grounds.

POINT I. AS THE CHARGES IN QUESTION ARE THE SUBJECT OF A FIRST-FILED BREACH-OF-CONTRACT ACTION NOW PENDING IN THE UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF NEW YORK, THE COMMISSION SHOULD DECLINE TO EXERCISE JURISDICTION OVER HOLIDAY'S COMPLAINT.

It should be needless to say, bringing a proceeding before the FMC for the same fees which are already the subject of a court action is patently improper. See, Verterra Ltd v. D.B Group Am., Ltd, Docket No. 19-09, 2020 WL 468027 (F.M.C. Jan. 13, 2020) (dismissing FMC proceeding on ground that a first-filed action concerning the same charges was pending in New York court, and also on ground that, by previously seeking relief there, the parties had already availed themselves of that court's jurisdiction); see also, generally, United States Securities and Exchange Comm'n v. Alpine Securites Corp., 768 Fed. Appx. 93 (2d Cir. 2019) (summary order) ("With limited exceptions, the first-filed rule instructs that the first suit takes priority.") (citations omitted) (quoting Curtis v. Citibank, N.A., 226 F.3d 133, 138 (2d Cir. 2000) (citing Emp'rs Ins. of Wausau v. Fox Entm't Grp., Inc., 522 F.3d 271, 275 (2d Cir. 2008))).

Moreover, while the Shipping Act established an administrative complaint process adjudicated by the FMC, which generally has exclusive jurisdiction over complaints based on violations of the Act, it is to be "[n]ote[d], however, that Section 8(c) of the Act requires that complaints alleging breach of contract claims be heard by a court, unless the parties otherwise agree (i.e. arbitration)." T. J. Schoenbaum, Admiralty and Maritime Law § 10-2 n.66 (4th ed., Thomson West 2004) (citing Vinmar, Inc. v. China Ocean Shipping Co., 26 S.R.R. 420, 1992 WL 231349

(F.M.C. 1992) (“[B]y attempting to retain a claim under section 10(b)(12) of the Act regarding unlawful prejudice and disadvantage, Vinmar would in effect be circumventing the congressional intention that service contracts, once entered into, be enforced by courts or otherwise, but not by the Commission unless the parties agreed.”); see also, Cargo One, Inc. v. COSCO Container Lines Co., 2000 WL 1648961 (F.M.C. 2000) (“We find that as a general matter, allegations essentially comprising contract law claims should be dismissed [by FMC] unless the party alleging the violation successfully rebuts the presumption that the claim is no more than a simple contract breach claim.”); Western Overseas Trade and Dev. Corp. v. ANERA, 26 S.R.R. 874 (F.M.C. 1995); Vinmar, DSR Shipping Co. v. Great White Fleet, Ltd., 26 S.R.R. 627 (F.M.C. 1992).

Again, the same charges under the same bills of lading are currently the subject of active litigation in the SDNY action, which predates this FMC proceeding by more than a year. Compare Exhibit A to Wolfson Declaration, ¶¶ 8-11 with Exhibit B to Wolfson Declaration, at ¶ 7. Such forum-shopping simply should not be countenanced. And comity and judicial efficiency should militate heavily in favor of yielding jurisdiction to the SDNY Action.

Furthermore, it must be noted, MAERSK’s SDNY Action Complaint, which evidently gave rise to HOLIDAY’s FMC Complaint, does not allege or claim a violation of the Shipping Act which could warrant adjudication in the context of an administrative proceeding. (Exhibit B to Wolfson Declaration). The action is an altogether straightforward lawsuit to recover ocean freight due and owing as a matter of contract and of a nature routinely heard by courts. Id. Similarly, entirely conclusory allegations of a Shipping Act violation aside, HOLIDAY’s FMC Complaint presents only the same dispute as to whether demurrage was owing under the contract of carriage. (Exhibit A to Wolfson Declaration). The argument for FMC jurisdiction is thus also baseless, even irrespective of the pendency of the SDNY Action.

POINT II.

AS MAERSK HAS AGREED TO RELEASE HOLIDAY FROM THE DEMURRAGE CHARGES UNDER THE SUBJECT BILLS OF LADING, HOLIDAY'S COMPLAINT SHOULD BE DISMISSED AS MOOT, IN ANY EVENT.

Where the contested fees which form the basis for the alleged case or controversy are voluntarily withdrawn, the FMC has traditionally not hesitated to dismiss complaints as moot, accordingly. See, Petition No. P2-16 Filed by Chassis Leasors for Order to Show Cause, Petition No. P2-16; 2016 WL 4698212 (F.M.C. Aug. 26, 2016) (“Now that the Fee here has been rescinded before its imposition, any continuing argument Petitioners and WCMTOA members may wish to undertake with the Commission about the Fee’s legality is simply ‘an abstract dispute about the law, unlikely to affect these [parties] any more than it affects other... citizens.’”) (quoting Alvarez v. Smith, 558 U.S. 87, 92 (2009); Arizonans for Official English v. Arizona, 520 US 43, 72 (1997); Lewis v. Continental Bank Corp., 494 U.S. 472, 477-78 (1990)); Distribution Serv’s Ltd. v. Asia N. Am. Eastbound Rate Agreement, Docket No. 90-02, 1990 WL 454990 (F.M.C. Nov. 2, 1990) (“The Federal Maritime Commission has consistently granted motions to dismiss based on mootness where by an act of a party or parties an existing controversy has come to an end.”) (citing Kerr Steamship Company, Inc. v. Isthmian Steamship Company, et al., 2 U.S.M.C. 93 (1939); The Port Commission of the City of Beaumont, et al. v. Seatrain Lines, Inc., 3 F.M.B. 581 (1951); Investigation of Rates in the Hong Kong-United States Atlantic and Gulf Trade, 11 F.M.C. 168 (1967); Pacific Far East Lines--Alleged Rebates, 11 F.M.C. 357 (1968); Pan Ocean Bulk Carriers Ltd.--Investigation of Rates on Neo-Bulk Commodities in the Trade Between the United States and South Korea, 22 F.M.C. 634 (1980).

MAERSK has agreed to forego all of the demurrage charges implicated in this proceeding, both formally and otherwise. See, Exhibits E-F to Wolfson Declaration. The only case or controversy extent here is thus purely one of HOLIDAY’s own making and a waste of time and

effort for all concerned. The demurrage upon which the entirety of HOLIDAY's cause of action has been founded having been waived, the Complaint should surely be dismissed on this basis, as well.

CONCLUSION.

WHEREFORE, MAERSK urges the Commission to dismiss all claims against MAERSK and award to MAERSK attorney's fees, costs, and such other and further relief as the Court may deem just and proper.

Dated: New York, New York
November 25, 2020

Respectfully submitted,

MAHONEY & KEANE, LLP
Attorneys for Plaintiff

By:



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(212) 385-1422

**BEFORE THE
FEDERAL MARITIME COMMISSION**



**MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
Complainant,**

Vs.

**MAERSK LINE A/S,
JOHN DOES,
Respondent.**

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CASE #:

Docket No. 20-17

COMPLAINT

COMES NOW Marie Carew d/b/a/ Holiday Shipping, LLC, and pursuant to 46 USC § 41102 and 46 CFR § 545.4, files this petition against Respondent, Maersk Line A/S, over the handling, storing, and delivering of individual containers, to wit: SUDU6808042; MSKU8180603; MSKU8445214; MRKU6064475, and respectfully shows as follows:

Jurisdiction and Venue

1.

Complainant brings this action under the Shipping Act of 1984, (46 USC §§ 40101-41309), and as amended (the "Act"), and in conformity with the Final Rule on Demurrage and Detention under the Shipping Act of 2020, as recorded in the Federal Register, Vol. 85, No. 96 of May 18, 2020.

2.

Complainant, Marie Carew d/b/a/ Holiday Shipping, LLC is a Georgia limited liability company, registered with the Federal Maritime Commission as an Ocean Transportation Intermediary License Non-Vessel-Operating Common Carrier No. 019138N.

3.

Respondent, Maersk Line A/S, is a foreign corporation and manages a fleet of vessels off the continental US ports. Process and the herein Complaint, if demanded, shall be delivered with its registered agent, CT Corporation System at 289 S. Culver Street, Lawrenceville, Georgia 30046-4805.

4.

Respondents, John Does, are individual(s) or organization(s) that are consignees under the various containers referenced in the herein petition, individual(s) or organization(s) who have

retained the services of Plaintiff to perform ocean freight services and in who the titles to the consignments lie. The Complainant may interplead each of these individual(s) or organization(s).

5.

The underlying action arises from the continued retention of the various containers referenced in the herein petition for the demurrage and detention fee that Respondent claims, which is a violation of the Commissioner's interpretation of 46 USC § 41102(c) and 46 CFR § 545.4(d).

6.

This Commission has personal and subject matter jurisdiction over these controversies pursuant to the Shipping Act of 1984 (46 USC §§ 40101-41309), and as amended (the "Act"). The venue is proper before the Commission.

Alleged Facts

7.

Complainant incorporates by reference paragraphs 1 through 6 of her Complaint as if fully set forth herein.

8.

On or around July 20, 2017, Complainant contracted Respondent for consignment SUDU6808042, and on behalf of one Agbai Ukaku Efere, listed as Consignee on B/L #: 965477262. The consignment includes used 2003 Mercedes Benz C230; 2008 Lexus RX350; 2006 Toyota Highlander; and 2008 VW Passat. Respondent demanded and received payment for freight. Notwithstanding, Respondent claims an additional fee of \$6,720.00, which, according to Respondent, was for thirty-eight (38) days of demurrage at USSAVGC from 07/15/2018 to 09/10/2018. Each of these days, for which Respondent charges demurrage, the consignment was with the Department of Customs and Border Patrol (CBP).

9.

Complainant contracted Respondent for consignment MSKU 8180603, and on behalf of one Mathias Otubo, listed as Consignee on B/L #: 965544009. The consignment includes used 2005 Toyota 4 Runner; 2005 Toyota 4 Runner; and 2004 Toyota Sienna. Respondent demanded and received payment for freight. Notwithstanding, Respondent claims an additional fee for demurrage

and detention. The consignment was with the Department of Customs and Border Patrol (CBP) for each of the days that Respondent charges demurrage and detention.

10.

Complainant contracted Respondent for consignment MSKU 8445214, and on behalf of one Austin Shonaiki, listed as Consignee on B/L #: 965751148. The consignment includes used 2003 Honda Accord; 2005 Ford Escape; and 2003 Acura MDX. Respondent demanded and received payment for freight. Notwithstanding, Respondent claims an additional fee of \$5,280.00, which, according to Respondent, was for thirty (30) days of demurrage at USSAVGC from 08/06/2018 to 09/04/2018. Each of these days, for which Respondent charges demurrage, the consignment was with the Department of Customs and Border Patrol (CBP).

11.

Complainant contracted Respondent for consignment MSKU 6064475, and on behalf of one Soyinka Samson Abayomi, listed as Consignee on B/L #: 965885829. The consignment includes used 2003 Toyota Sequoia; 2007 Nissan Murano; and 2003 Toyota RAV4. Respondent demanded and received payment for freight. Notwithstanding, Respondent claims an additional fee for demurrage and detention. The consignment was with the Department of Customs and Border Patrol (CBP) for each of the days that Respondent charges demurrage and detention.

12.

For each of these consignments, Respondent escalated the demurrage and detention while the consignments were undergoing government inspection, and without extenuating circumstances. Thus, the Respondent policy is unreasonable and punitive.

13.

The Complainant or the Consignees did not have the means to mitigate the damages due to the demurrage and detention while the consignments were undergoing government inspection. Thus, the Respondent policy is unreasonable and punitive.

14.

For each of these consignments, Respondent did not cap the amount of damages imposed for demurrage and detention while the consignments were undergoing government inspection, and without extenuating circumstances. Thus, the Respondent policy is unreasonable and punitive.

Request for Relief

15.

Complainant incorporates by reference paragraphs 1 through 14 of her Complaint as if fully set forth herein.

16.

Complainant requests that Respondent be required to answer the charges made in the herein Complaint, that, after a hearing, the Commission mandates Respondent: (1) to release the consignments in its possession immediately; (2) to cease and desist from further violation of the Shipping Act; (3) to put in place lawful and reasonable practices; (4) to indemnify Complainant for all damages from actions of Consignees, including its attorney's fees and with interest; (5) for any other damages and sums that the Commission determines to be proper; and (6) that the Commission make any further orders as it determines to be appropriate.

Request for Oral Hearing

17.

Complainant incorporates by reference paragraphs 1 through 16 of her Complaint as if fully set forth herein.

18.

Complainant now seeks an oral hearing on each of these allegations and requests that the hearing takes place in Atlanta, Georgia.

WHEREFORE, Complainant demands that the Commission gives judgment in her favor and against the Respondent for all damages, and cast the cost of the herein action upon Respondent.

Respectfully submitted,

/s/ Yinka Omole

Yinka T. Omole, Esquire
Attorney for Complainant
Georgia Bar #: 553795

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BEFORE THE
FEDERAL MARITIME COMMISSION

MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
Complainant,

Vs.

MAERSK LINE A/S,
JOHN DOES,
Respondent.

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CASE #:

Verification

The undersigned verifies that the facts asserted in the preceding Complaint are true and correct to the best of her knowledge.

This 9th day of October, 2020.

Marie Carew
Marie Carew

BEFORE THE
FEDERAL MARITIME COMMISSION



MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
Complainant,

Vs.

MAERSK LINE A/S,
JOHN DOES,
Respondent.

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CASE #:

Docket No. 20-17

ENTRY OF APPEARANCE

PLEASE NOTE the entry of appearance of Yinka T. Omole as the attorney of record for Complainant Marie Carew d/b/a/ Holiday Shipping. Undersigned attorney hereby requests that all copies of all court notices, calendars, etc. in the above-numbered case be sent to him at the address below.

This 9th day of October, 2020.

Respectfully submitted,

/s/ Yinka Omole

Yinka T. Omole, Esquire
Attorney for Complainant
Georgia Bar #: 553795

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MAERSK LINE A/S,

Plaintiff,

-against-

MARIE S. CAREW t/a HOLIDAY SHIPPING,

Defendant.

19 Civ. 4870

COMPLAINT

PLEASE TAKE NOTICE that Plaintiff, MAERSK LINE A/S (“MAERSK”), by its attorneys, Mahoney & Keane, LLP, as and for a Complaint against Defendant, MARIE S. CAREW t/a HOLIDAY SHIPPING (“HOLIDAY”), alleges, upon information and belief, as follows:

1. This is a claim within the meaning of Rule 9(h) of the Federal Rules of Civil Procedure and falls under the Court’s admiralty and maritime and federal question jurisdiction pursuant to 28 U.S.C. §§ 1331 and 1333 in that it involves a claim for the breach of a maritime contract.

2. Plaintiff, MAERSK, is a corporation duly organized and existing pursuant to the laws of foreign country, with offices and place of business located at 50 Esplaneden, DK-1098, Copenhagen K, Denmark.

3. Defendant, HOLIDAY, is sole proprietorship licensed with the Federal Maritime Commission as a non-vessel owning common carrier and ocean transportation intermediary with offices and a place of business located at 1153 Willingham Drive, East Point, GA 30344.

4. The United States District Court for the Southern District of New York is the proper venue for this action pursuant to the Law and Jurisdiction clause contained in the governing Bills of Lading.

5. Plaintiff sues on its own behalf and as agent and trustee on behalf of any other party who may now have or hereinafter acquire an interest in this action.

AS AND FOR A FIRST CAUSE OF ACTION

6. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "5" as if specifically set forth herein at length.

7. On or about January of 2015, February through May of 2016, December of 2016, March through April of 2017, August of 2017, October of 2017, March through November of 2018, January of 2019, and March of 2019, and at all times relevant herein, MAERSK, as "Carrier", and HOLIDAY, as "Shipper", entered into and were parties to bills of lading numbered 566942411, 576254394, 955061776, 955153015, 955728620, 955824174, 955831738, 956105215, 956209532, 956737002, 956751241, 957569046, 957569049, 957849148, 958115327, 958348126, 958632718, 958647967, 958706912, 958706920, 958706950, 958961505, 959064153, 959298172, 959384493, 959384639, 959404137, 959417057, 959533182, 959666400, 960011124, 960739844, 960930389, 961519364, 961640116, 961748325, 962479448, 963694372, 963721565, 963741113, 963807713, 964047680, 964354949, 964510571, 964671670, 964765517, 964830164, 964841064, 964897195, 964948943, 965003598, 965069141, 965077376, 965121979, 965389181, 965448503, 965477262, 965477262, 965485698, 965544009, 965640166, 965640202, 965690272, 965690350, 965751148, 965751148, 965786726, 965786728, 965796238, 965885826, 965885829, 965965069, 965975136, 965975140, 966009481, 966017145, 966078843, 966088619, and 966088624 for the ocean carriage of containerized cargoes of motor vehicles, auto parts, personal effects, household, and used machinery and other goods from United States ports to African ports.

8. Plaintiff duly performed all duties and obligations required to be performed by Plaintiff in connection with the goods.

9. Defendant wrongfully, willfully, negligently and/or fraudulently breached the terms of the subject agreements by, inter alia, failing to pay for basic ocean freight, detention, demurrage, per diem charges, inland haulage, low Sulphur surcharges, congestion fees, shifting expenses, bunker fees, port dues, documentation fees, and other associated and incidental customs duties, fees, taxes, costs, charges, and expenses accrued on the containers, all as duly invoiced by Plaintiff to Defendant.

10. As a result of Defendant's breach of the agreements, Plaintiff has incurred, and will continue to incur, costs and expenses for which Defendant is liable under the terms of the governing contracts and at law.

11. Plaintiff has placed Defendant on notice of its claim that Defendant has breached the subject agreements and violated Plaintiff's rights under the law.

12. Despite Plaintiff's repeated demands, Defendant has failed to pay the Plaintiffs' damages due and owing under the agreements and at law.

13. By reason of the foregoing, Plaintiff has sustained damages in the amount of \$173,025.74, together with interest, costs, fees, including reasonable attorneys' fees, and expenses.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "13" as if specifically set forth herein at length.

15. Defendant has an account stated with Plaintiff.

16. By reason of the foregoing, Plaintiff has sustained damages in the amount of \$173,025.74, together with interest, costs, fees, including reasonable attorneys' fees, and expenses.

AS AND FOR A THIRD CAUSE OF ACTION

17. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "16" as if specifically set forth herein at length.

18. Defendant has been unjustly enriched at Plaintiff's expense, and Plaintiff is entitled to restitution from Defendant in the amount of \$173,025.74, together with interest, costs, fees, including reasonable attorneys' fees, and expenses.

AS AND FOR A FOURTH CAUSE OF ACTION

19. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "18" as if specifically set forth herein at length.

20. Plaintiff is due from Defendant the quantum meruit of Plaintiff's services.

WHEREFORE, Plaintiffs pray that judgment be entered in favor of Plaintiffs for an amount exceeding \$173,025.74, together with interest, costs, fees, including reasonable attorneys' fees, and disbursements; that Court process be issued against the Defendant; and that Plaintiffs be granted such other and further relief as the Court may deem just and proper.

Dated: New York, New York
May 24, 2019

MAHONEY & KEANE, LLP
Attorneys for Plaintiff

By: s/ Garth S. Wolfson
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New York, New York 10006
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MAERSK LINE

BILL OF LADING FOR OCEAN TRANSPORT OR MULTIMODAL TRANSPORT

SCAC MAEU

B/L No. 965477262

Shipper HOLIDAY SHIPPING 1153 WILLINGHAM DRIVE EAST POINT 30344 GA US		Booking No. 965477262	
		Export references	Svc Contract 4227744
		Onward inland routing (Not part of Carriage as defined in clause 1. For account and risk of Merchant)	
Consignee (negotiable only if consigned "to order", "to order of" a named Person or "to order of bearer") AGBAI UKAKU EFERE 47 AKOGUN STREET OLODI APAPA LAGOS NIGERIA Phone: 2348023187718		Notify Party (see clause 22) AGBAI UKAKU UFERE 47 AKOGUN STREET OLODI APAPA LAGOS NIGERIA Phone: 2348023187718	
Vessel (see clause 1 + 19) SEALAND ILLINOIS	Voyage No. 835E	Place of Receipt. Applicable only when document used as Multimodal Transport B/L. (see clause 1) Atlanta	
Port of Loading Savannah	Port of Discharge Tin Can Island	Place of Delivery. Applicable only when document used as Multimodal Transport B/L. (see clause 1)	

PARTICULARS FURNISHED BY SHIPPER

Kind of Packages; Description of goods; Marks and Numbers; Container No./Seal No.	Weight	Measurement
1 Container Said to Contain 4 UNITS USED MERCEDES BANZ c230 2003 VIN# WDBRF40J63F385196-3,500LBS USED LEXUS RX350 2008 VIN# 2T2HK31U88C066180-4,000LBS USED TOYOTA HIGHLANDER 2006 VIN# JTEGP21A360113362-4,000LBS USED PARS ONLY VW PASSAT 2008 VIN# WVWAK73C98E078112-3,000LBS AES:X2018071907435 FORM "M" N/A SUDU6808042 40 DRY 9'6 4 UNITS 33121.000 US LBS 1000.0000 CFT Shipper Seal : 965960 SHIPPER'S LOAD, STOW, WEIGHT AND COUNT FREIGHT PREPAID CY/CY	33121.000 US LBS	1000.0000 CFT

Above particulars as declared by Shipper, but without responsibility of or representation by Carrier (see clause 14)

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Basic Ocean Freight	2190.00	Per Container	USD	2190.00	
Container Cleaning Imports	4000.00	Per Container	NGN		4000.00
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	

Carrier's Receipt (see clause 1 and 14). Total number of containers or packages received by Carrier. 1 container	Place of Issue of B/L Charlotte	RECEIVED by the Carrier from the Shipper, as far as ascertained by reasonable means of checking, in apparent good order and condition unless otherwise stated herein, the total number or quantity of Containers or other packages or units indicated in the box entitled "Carrier's Receipt" for carriage from the Port of Loading (or the Place of Receipt, if mentioned above) to the Port of Discharge (or the Place of Delivery, if mentioned above), such carriage being always subject to the terms, rights, defences, provisions, conditions, exceptions, limitations, and liberties hereof (INCLUDING ALL THOSE TERMS AND CONDITIONS ON THE REVERSE HEREOF NUMBERED 1-26 AND THOSE TERMS AND CONDITIONS CONTAINED IN THE CARRIER'S APPLICABLE TARIFFS) and the Merchant's attention is drawn in particular to the Carrier's liabilities in respect of on deck stowage (see clause 18) and the carrying vessel (see clause 19). Where the bill of lading is non-negotiable the Carrier may give delivery of the Goods to the named consignee upon reasonable proof of identity and without requiring surrender of an original bill of lading. Where the bill of lading is negotiable, the Merchant is obliged to surrender one original, duly endorsed, in exchange for the Goods. The Carrier accepts a duty of reasonable care to check that any such document which the Merchant surrenders as a bill of lading is genuine and original. If the Carrier complies with this duty, it will be entitled to deliver the Goods against what it reasonably believes to be a genuine and original bill of lading, such delivery discharging the Carrier's delivery obligations. In accepting this bill of lading, any local customs or privileges to the contrary notwithstanding, the Merchant agrees to be bound by all Terms and Conditions stated herein whether written, printed, stamped or incorporated on the face or reverse side hereof, as fully as if they were all signed by the Merchant. IN WITNESS WHEREOF the number of original Bills of Lading stated on this side have been signed and wherever one original Bill of Lading has been surrendered any others shall be void.
Number & Sequence of Original B(s)/L THREE/3	Date of Issue of B/L	
Declared Value (see clause 7.3)	Received for Shipment Date	

Forwarder
HOLIDAY SHIPPING
S RIVER INDUSTRIAL BLVD SE
Atlanta GA
30315

Signed for the Carrier Maersk Line A/S

Maersk Agency U.S.A., Inc - Charlotte
As Agent(s)

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Destination Certificate Charge	100.00	Per Documentation Fee	NGN		100.00
Documentation fee - Destination	49900.00	Per Container	NGN		49900.00
Emergency Bunker Surcharge	120.00	Per Container	USD	120.00	
Low Sulphur Surcharge	80.00	Per Container	USD	80.00	
Port Additional / Port Dues - Import	76000.00	Per Container	NGN		76000.00
Total NGN			NGN		130000.00
Total USD			USD	3765.00	

**MAERSK LINE****BILL OF LADING FOR OCEAN TRANSPORT
OR MULTIMODAL TRANSPORT**

SCAC MAEU

B/L No. 965544009

Shipper HOLIDAY SHIPPING 1153 WILLINGHAM DRIVE EAST POINT 30344 GA US		Booking No. 965544009
		Export references Svc Contract 4227744
		Onward inland routing (Not part of Carriage as defined in clause 1. For account and risk of Merchant)
Consignee (negotiable only if consigned "to order", "to order of" a named Person or "to order of bearer") MATHIAS OTUBO 17 OUDUNFA STREET LAGOS NIGERIA Phone: 2348030600113		Notify Party (see clause 22) MATHIAS OTUBO 17 ODUNFA STREET LAGOS NIGERIA Phone: 2348030600113
Vessel (see clause 1 + 19) MSC RITA	Voyage No. 833E	Place of Receipt. Applicable only when document used as Multimodal Transport B/L. (see clause 1) Atlanta
Port of Loading Savannah	Port of Discharge Tin Can Island	Place of Delivery. Applicable only when document used as Multimodal Transport B/L. (see clause 1)

PARTICULARS FURNISHED BY SHIPPER

Kind of Packages; Description of goods; Marks and Numbers; Container No./Seal No.	Weight	Measurement
1 Container Said to Contain 3 UNITS USED TOYOTA 4 RUNNER 2005 VIN# JTEBU17R258030418-5,500LBS USED TOYOTA 4 RUNNER 2005 VIN# JTEZU14R358031676-5,500LBS USED TOYOTA SIENNA 2004 VIN# 5TDA22C54S075223-4,000LBS AES:X20180713985787 FORM "M" N/A MSKU8180603 40 DRY 9'6 3 UNITS 23082.000 US LBS 1000.0000 CFT Shipper Seal : 965970 SHIPPER'S LOAD, STOW, WEIGHT AND COUNT FREIGHT PREPAID CY/CY	23082.000 US LBS	1000.0000 CFT

Above particulars as declared by Shipper, but without responsibility of or representation by Carrier (see clause 14)

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Basic Ocean Freight	2190.00	Per Container	USD	2190.00	
Container Cleaning Imports	4000.00	Per Container	NGN		4000.00
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	

Carrier's Receipt (see clause 1 and 14). Total number of containers or packages received by Carrier. 1 container	Place of Issue of B/L Charlotte	RECEIVED by the Carrier from the Shipper, as far as ascertained by reasonable means of checking, in apparent good order and condition unless otherwise stated herein, the total number or quantity of Containers or other packages or units indicated in the box entitled "Carrier's Receipt" for carriage from the Port of Loading (or the Place of Receipt, if mentioned above) to the Port of Discharge (or the Place of Delivery, if mentioned above), such carriage being always subject to the terms, rights, defences, provisions, conditions, exceptions, limitations, and liberties hereof (INCLUDING ALL THOSE TERMS AND CONDITIONS ON THE REVERSE HEREOF NUMBERED 1-26 AND THOSE TERMS AND CONDITIONS CONTAINED IN THE CARRIER'S APPLICABLE TARIFF) and the Merchant's attention is drawn in particular to the Carrier's liabilities in respect of on deck stowage (see clause 18) and the carrying vessel (see clause 15). Where the bill of lading is non-negotiable the Carrier may give delivery of the Goods to the named consignee upon reasonable proof of identity and without requiring surrender of an original bill of lading. Where the bill of lading is negotiable, the Merchant is obliged to surrender one original, duly endorsed, in exchange for the Goods. The Carrier accepts a duty of reasonable care to check that any such document which the Merchant surrenders as a bill of lading is genuine and original. If the Carrier complies with this duty, it will be entitled to deliver the Goods against what it reasonably believes to be a genuine and original bill of lading, such delivery discharging the Carrier's delivery obligations. In accepting this bill of lading, any local customs or privileges to the contrary notwithstanding, the Merchant agrees to be bound by all Terms and Conditions stated herein whether written, printed, stamped or incorporated on the face or reverse side hereof, as fully as if they were all signed by the Merchant. IN WITNESS WHEREOF the number of original Bills of Lading stated on this side have been signed and wherever one original Bill of Lading has been surrendered any others shall be void.
Number & Sequence of Original B(s)/L THREE/3	Date of Issue of B/L	
Declared Value (see clause 7.3)	Received for Shipment Date 2018-09-05	

Forwarder
HOLIDAY SHIPPING
S RIVER INDUSTRIAL BLVD SE
Atlanta GA
30315

Signed for the Carrier Maersk Line A/S

Maersk Agency U.S.A., Inc - Charlotte

As Agent(s)

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Destination Certificate Charge	100.00	Per Documentation Fee	NGN		100.00
Documentation fee - Destination	43200.00	Per Container	NGN		43200.00
Emergency Bunker Surcharge	120.00	Per Container	USD	120.00	
Low Sulphur Surcharge	80.00	Per Container	USD	80.00	
Port Additional / Port Dues - Import	65130.00	Per Container	NGN		65130.00
Total NGN			NGN		112430.00
Total USD			USD	3765.00	



MAERSK LINE

BILL OF LADING FOR OCEAN TRANSPORT OR MULTIMODAL TRANSPORT

SCAC MAEU

B/L No. 965751148

Shipper HOLIDAY SHIPPING 1153 WILLINGHAM DRIVE EAST POINT 30344 GA US		Booking No. 965751148
		Export references Svc Contract 4227744
		Onward inland routing (Not part of Carriage as defined in clause 1. For account and risk of Merchant)
Consignee (negotiable only if consigned "to order", "to order of" a named Person or "to order of bearer") AUSTIN SHONAIKE 35 ADEOYE ADEYEMI STREET MARYLAND LAGOS NIGERIA Phone: 2348094096787		Notify Party (see clause 22) AUSTIN SHONAIKE 35 ADEOYE ADEYEMI STREET MARYLAND LAGOS NIGERIA Phone: 2348094096787
Vessel (see clause 1 + 19) MSC RITA	Voyage No. 833E	Place of Receipt. Applicable only when document used as Multimodal Transport B/L. (see clause 1) Atlanta
Port of Loading Savannah	Port of Discharge Tin Can Island	Place of Delivery. Applicable only when document used as Multimodal Transport B/L. (see clause 1)

PARTICULARS FURNISHED BY SHIPPER

Kind of Packages; Description of goods; Marks and Numbers; Container No./Seal No.	Weight	Measurement
1 Container Said to Contain 3 UNITS USED HONDA ACCORD 2003 VIN# 1HGCM563X3A036262-3,509LBS USED SALVAGE FORD ESCAPE 2005 VIN# 1FMYU03155KB359946-3,800LBS USED SALVAGE ACURA MDX 2003 VIN# 2HNYD18863H511259-4,000LBS AES:X20180726708255 FORM "M" N/A MSKU8445214 40 DRY 9'6 3 UNITS 17457.000 US LBS 1000.0000 CFT Customs Seal : 3403157 SHIPPER'S LOAD, STOW, WEIGHT AND COUNT FREIGHT PREPAID CY/CY	17457.000 US LBS	1000.0000 CFT
Above particulars as declared by Shipper, but without responsibility of or representation by Carrier (see clause 14)		

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Basic Ocean Freight	2190.00	Per Container	USD	2190.00	
Container Cleaning Imports	4000.00	Per Container	NGN		4000.00
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	
Destination Certificate Charge	100.00	Per Documentation Fee	NGN		100.00
Documentation fee - Destination	43200.00	Per Container	NGN		43200.00

Carrier's Receipt (see clause 1 and 14). Total number of containers or packages received by Carrier. 1 container	Place of Issue of B/L Charlotte	RECEIVED by the Carrier from the Shipper, as far as ascertained by reasonable means of checking, in apparent good order and condition unless otherwise stated herein, the total number or quantity of Containers or other packages or units indicated in the box entitled "Carrier's Receipt" for carriage from the Port of Loading (or the Place of Receipt, if mentioned above) to the Port of Discharge (or the Place of Delivery, if mentioned above), such carriage being always subject to the terms, rights, defences, provisions, conditions, exceptions, limitations, and liberties hereof (INCLUDING ALL THOSE TERMS AND CONDITIONS ON THE REVERSE HEREOF NUMBERED 1-26 AND THOSE TERMS AND CONDITIONS CONTAINED IN THE CARRIER'S APPLICABLE TARIFF) and the Merchant's attention is drawn in particular to the Carrier's liberties in respect of on deck stowage (see clause 18) and the carrying vessel (see clause 19). Where the bill of lading is non-negotiable the Carrier may give delivery of the Goods to the named consignee upon reasonable proof of identity and without requiring surrender of an original bill of lading. Where the bill of lading is negotiable, the Merchant is obliged to surrender one original, duly endorsed, in exchange for the Goods. The Carrier accepts a duty of reasonable care to check that any such document which the Merchant surrenders as a bill of lading is genuine and original. If the Carrier complies with this duty, it will be entitled to deliver the Goods against what it reasonably believes to be a genuine and original bill of lading, such delivery discharging the Carrier's delivery obligations. In accepting this bill of lading, any local customs or privileges to the contrary notwithstanding, the Merchant agrees to be bound by all Terms and Conditions stated herein whether written, printed, stamped or incorporated on the face or reverse side hereof, as fully as if they were all signed by the Merchant. IN WITNESS WHEREOF the number of original Bills of Lading stated on this side have been signed and wherever one original Bill of Lading has been surrendered any others shall be void.
Number & Sequence of Original B(s)/L THREE/3	Date of Issue of B/L	
Declared Value (see clause 7.3)	Received for Shipment Date 2018-09-05	

Forwarder
HOLIDAY SHIPPING
S RIVER INDUSTRIAL BLVD SE
Atlanta GA
30315

Signed for the Carrier Maersk Line A/S

Maersk Agency U.S.A., Inc - Charlotte
 As Agent(s)

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Emergency Bunker Surcharge	120.00	Per Container	USD	120.00	
Low Sulphur Surcharge	80.00	Per Container	USD	80.00	
Port Additional / Port Dues - Import	65130.00	Per Container	NGN		65130.00
Total NGN			NGN		112430.00
Total USD			USD	3215.00	



MAERSK LINE

BILL OF LADING FOR OCEAN TRANSPORT OR MULTIMODAL TRANSPORT

SCAC MAEU

B/L No. 965885829

Shipper HOLIDAY SHIPPING 1153 WILLINGHAM DRIVE EAST POINT 30344 GA US		Booking No. 965885829
		Export references Svc Contract 4227744
		Onward inland routing (Not part of Carriage as defined in clause 1. For account and risk of Merchant)
Consignee (negotiable only if consigned "to order", "to order of" a named Person or "to order of bearer") SOYINKA SAMSON ABAYOMI 5TH AVE 512 ROAD C CLOSE FLAT 1 FESTAC TOWN LAGOS NIGERIA Phone: 2347010463950		Notify Party (see clause 22) SOYINKA SAMSON ABAYOMI 5TH AVE 512 ROAD C CLOSE FLAT 1 FESTAC TOWN LAGOS NIGERIA Phone: 2347010463950
Vessel (see clause 1 + 19) SEALAND WASHINGTON	Voyage No. 836E	Place of Receipt. Applicable only when document used as Multimodal Transport B/L. (see clause 1) Atlanta
Port of Loading Savannah	Port of Discharge Tin Can Island	Place of Delivery. Applicable only when document used as Multimodal Transport B/L. (see clause 1)

PARTICULARS FURNISHED BY SHIPPER

Kind of Packages; Description of goods; Marks and Numbers; Container No./Seal No.	Weight	Measurement
1 Container Said to Contain 3 UNITS USED TOYOTA SEQUOIA 2003 VIN# 5TDBT44A13S152767-5,500LBS USED NISSAN MURANO 2007 VIN# JN8Az08T37W529866-4,000LBS USED TOYOTA RAV4 2003 VIN# JTEGH20VX30118779-3,800LBS AES:X20180814741762 FORM "M" N/A MRKU6064475 40 DRY 9'6 3 UNITS 35000.000 US LBS 1000.0000 CFT Shipper Seal : 1947792 SHIPPER'S LOAD, STOW, WEIGHT AND COUNT FREIGHT PREPAID CY/CY	35000.000 US LBS	1000.0000 CFT

Above particulars as declared by Shipper, but without responsibility of or representation by Carrier (see clause 14)

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Basic Ocean Freight	2190.00	Per Container	USD	2190.00	
Container Cleaning Imports	4000.00	Per Container	NGN		4000.00
Container Shifting Origin	275.00	Per Container	USD	275.00	
Container Shifting Origin	275.00	Per Container	USD	275.00	
Destination Certificate Charge	100.00	Per Documentation Fee	NGN		100.00
Documentation fee - Destination	43200.00	Per Container	NGN		43200.00
Emergency Bunker Surcharge	120.00	Per Container	USD	120.00	

Carrier's Receipt (see clause 1 and 14). Total number of containers or packages received by Carrier. 1 container	Place of Issue of B/L Charlotte	RECEIVED by the Carrier from the Shipper, as far as ascertained by reasonable means of checking, in apparent good order and condition unless otherwise stated herein, the total number or quantity of Containers or other packages or units indicated in the box entitled "Carrier's Receipt" for carriage from the Port of Loading (or the Place of Receipt, if mentioned above) to the Port of Discharge (or the Place of Delivery, if mentioned above), such carriage being always subject to the terms, rights, defences, provisions, conditions, exceptions, limitations, and liberties hereof (INCLUDING ALL THOSE TERMS AND CONDITIONS ON THE REVERSE HEREOF NUMBERED 1-26 AND THOSE TERMS AND CONDITIONS CONTAINED IN THE CARRIER'S APPLICABLE TARIFF) and the Merchant's attention is drawn in particular to the Carrier's liberties in respect of on deck stowage (see clause 18) and the carrying vessel (see clause 19). Where the bill of lading is non-negotiable the Carrier may give delivery of the Goods to the named consignee upon reasonable proof of identity and without requiring surrender of an original bill of lading. Where the bill of lading is negotiable, the Merchant is obliged to surrender one original, duly endorsed, in exchange for the Goods. The Carrier accepts a duty of reasonable care to check that any such document which the Merchant surrenders as a bill of lading is genuine and original. If the Carrier complies with this duty, it will be entitled to deliver the Goods against what it reasonably believes to be a genuine and original bill of lading, such delivery discharging the Carrier's delivery obligations. In accepting this bill of lading, any local customs or privileges to the contrary notwithstanding, the Merchant agrees to be bound by all Terms and Conditions stated herein whether written, printed, stamped or incorporated on the face or reverse side hereof, as fully as if they were all signed by the Merchant. IN WITNESS WHEREOF the number of original Bills of Lading stated on this side have been signed and wherever one original Bill of Lading has been surrendered any others shall be void.
Number & Sequence of Original B(s)/L THREE/3	Date of Issue of B/L	
Declared Value (see clause 7.3)	Received for Shipment Date	

Forwarder
HOLIDAY SHIPPING
 S RIVER INDUSTRIAL BLVD SE
 Atlanta GA
 30315

Signed for the Carrier Maersk Line A/S

Maersk Agency U.S.A., Inc - Charlotte
 As Agent(s)

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Low Sulphur Surcharge	80.00	Per Container	USD	80.00	
Port Additional / Port Dues - Import	65130.00	Per Container	NGN		65130.00
Total NGN			NGN		112430.00
Total USD			USD	2940.00	



Terms for Carriage

1. Definitions

"Carriage" means the whole or any part of the carriage, loading, unloading, handling and any and all other services whatsoever undertaken by the Carrier in relation to the Goods.

"Carrier" means Maersk Line A/S of 50 Esplanaden, DK-1098, Copenhagen K, Denmark.

"Container" includes any container (including an open top container), flat rack, platform, trailer, transportable tank, pallet or any other similar article used to consolidate the Goods and any connected equipment.

"Freight" includes all charges payable to the Carrier in accordance with the applicable Tariff and this bill of lading.

"Goods" means the whole or any part of the cargo and any packaging accepted from the Shipper and includes any Container not supplied by or on behalf of the Carrier.

"Hague Rules" means the provisions of the International Convention for the Unification of Certain Rules relating to Bills of Lading signed at Brussels on 25th August 1924.

"Holder" means any Person for the time being in possession of this Bill of Lading or to whom rights of suit and/or liability under this bill of lading have been transferred or vested.

"Merchant" includes the Shipper, Holder, Consignee, Receiver of the Goods, any Person owning or entitled to the possession of the Goods or of this bill of lading and anyone acting on behalf of such Person.

"Multimodal Transport" arises if the Place of Receipt and/or the Place of Delivery are indicated on the reverse hereof in the relevant boxes.

"Ocean Transport" arises if the Carriage is not Multimodal Transport.

"Person" includes an individual, corporation, or other legal entity.

"Subcontractor" includes owners, charterers and operators of vessels (other than the Carrier), stevedores, terminal and groupage operators, road and rail transport operators, warehousemen, and any independent contractors employed by the Carrier performing the Carriage or whose services or equipment have been used for the Carriage and any direct or indirect subcontractors, servants and agents thereof whether in direct contractual privity or not.

"Terms and Conditions" means all terms, rights, defences, provisions, conditions, exceptions, limitations and liberties hereof.

"US COGSA" means the US Carriage of Goods by Sea Act 1936.

"Vessel" means any water borne craft used in the Carriage under this bill of lading which may be a feeder vessel or an ocean vessel.

2. Carrier's Tariff

The terms and conditions of the Carrier's applicable Tariff are incorporated herein. Attention is drawn to the terms therein relating to free storage time and to container and vehicle demurrage or detention. Copies of the relevant provisions of the applicable Tariff are obtainable from the Carrier upon request. In the case of inconsistency between this bill of lading and the applicable Tariff, the bill of lading shall prevail.

3. Warranty

The Merchant warrants that in agreeing to the Terms and Conditions hereof he is, or has the authority to contract on behalf of, the Person owning or entitled to possession of the Goods and this bill of lading.

4. Sub Contracting

4.1 The Carrier shall be entitled to sub contract on any terms whatsoever the whole or any part of the Carriage.

4.2 It is hereby expressly agreed that:

(a) No Subcontractor, agent or servant shall in any circumstances whatsoever be under any liability whatsoever to the Merchant for any loss, damage or delay of whatsoever kind arising or resulting directly or indirectly from any act, neglect or default on the Subcontractor, agent or servant's part while acting in the course of or in connection with the Goods or the Carriage of the Goods.

(b)

(i) The Merchant undertakes that no claim or allegation whether arising in contract, bailment, tort or otherwise shall be made against any servant, agent, or Subcontractor of the Carrier which imposes or attempts to impose upon any of them or any vessel owned or chartered by any of them any liability whatsoever in connection with the Goods or the Carriage of the Goods whether or not arising out of negligence on the part of such Person. The Subcontractor, agent or servant shall also be entitled to enforce the foregoing covenant against the Merchant; and

(ii) if any such claim or allegation should nevertheless be made, to indemnify the Carrier against all consequences thereof.

(c) Without prejudice to the generality of the foregoing provisions of this clause, every exemption, limitation, condition and liberty contained herein (other than Art III rule 8 of the Hague Rules) and every right, exemption from liability, defence and immunity of whatsoever nature applicable to the Carrier or to which the Carrier is entitled hereunder including the right to enforce any jurisdiction provision contained herein (clause 26) shall also be available and shall extend to every such Subcontractor, agent or servant, who shall be entitled to enforce the same against the Merchant.

4.3 The provisions of clause 4.2(c) including but not limited to the undertaking of the Merchant contained therein, shall extend to all claims or allegations of whatsoever nature against other Persons chartering space on the carrying vessel.

4.4 The Merchant further undertakes that no claim or allegation in respect of the Goods shall be made against the Carrier by any Person other than in accordance with these Terms and Conditions which imposes or attempts to impose upon the Carrier any liability whatsoever in connection with the Goods or the Carriage of the Goods, whether or not arising out of negligence on the part of the Carrier, and if any such claim or allegation should nevertheless be made, to indemnify the Carrier against all consequences thereof.

5. Carrier's Responsibility: Ocean Transport

5.1 Where the Carriage is Ocean Transport, the Carrier undertakes to perform and/or in his own name to procure performance of the Carriage from the Port of Loading to the Port of Discharge. The liability of the Carrier for loss of or damage to the Goods occurring between the time of acceptance by the Carrier of custody of the Goods at the Port of Loading and the time of the Carrier tendering the Goods for delivery at the Port of Discharge shall be determined in accordance with Articles 1-8 of the Hague Rules save as is otherwise provided in these Terms and Conditions. These articles of the Hague Rules shall apply as a matter of contract.

5.2 The Carrier shall have no liability whatsoever for any loss or damage to the Goods, howsoever caused, if such loss or damage arises before acceptance by the Carrier of custody of the Goods or after the Carrier tendering the cargo for delivery. Notwithstanding the above, to the extent any applicable compulsory law provides to the contrary, the Carrier shall have the benefit of every right, defence, limitation and liberty in the

5.3 Where US COGSA applies then the provisions stated in the said Act shall govern during Carriage to or from a container yard or container freight station at the Port of Loading before loading on the vessel or at the Port of Discharge before delivery to an inland carrier.

5.4 If the Carrier is requested by the Merchant to procure Carriage by an inland carrier and the inland carrier in his discretion agrees to do so, such Carriage shall be procured by the Carrier as agent only to the Merchant and Carrier shall have no liability for such carriage or the acts or omissions of such inland carrier.

6. Carrier's Responsibility Multimodal Transport

Where the Carriage is Multimodal Transport, the Carrier undertakes to perform and/or in his own name to procure performance of the Carriage from the Place of Receipt or the Port of Loading, whichever is applicable, to the Port of Discharge or the Place of Delivery, whichever is applicable. The Carrier shall have no liability whatsoever for loss or damage to the Goods occurring before acceptance by the Carrier of custody of the Goods or after the Carrier tendering the Goods for delivery at the applicable points, and, the Carrier shall be liable for loss or damage occurring during the Carriage only to the extent set out below:

6.1 Where the stage of Carriage where loss or damage occurred is not known.

(a) The Carrier shall be relieved of liability for any loss or damage where such loss or damage was caused by:

(i) an act or omission of the Merchant or Person acting on behalf of the Merchant other than the Carrier, his servant, agent or Subcontractor;

(ii) compliance with instructions of any Person entitled to give them;

(iii) insufficient or defective condition of packing or marks;

(iv) handling, loading, stowage or unloading of the Goods by the Merchant or any Person acting on his behalf;

(v) inherent vice of the Goods;

(vi) strike, lock out, stoppage or restraint of labour, from whatever cause, whether partial or general;

(vii) a nuclear incident;

(viii) any cause or event which the Carrier could not avoid and the consequences whereof he could not prevent by the exercise of reasonable diligence.

(b) The burden of proof that the loss or damage was due to a cause(s) or event(s) specified in clause 6.1 shall rest on the Carrier, but if there is any evidence the loss or damage is attributable to one or more cause or event specified in clause 6.1(a)(iii), (iv) or (v), it shall be presumed that it was so caused. The Merchant shall, however, be entitled to prove that the loss or damage was not, in fact, caused either wholly or partly by one or more of these causes or events.

6.2 Where the stage of Carriage where the loss or damage occurred is known notwithstanding anything provided for in clause 6.1 and subject to clause 18, the liability of the Carrier in respect of such loss or damage shall be determined:

(a) if the loss or damage is known to have occurred during Carriage by sea for shipments not to or from the United States of America or waterborne Carriage not in the U.S. by the Hague Rules Articles 1-8. These articles of the Hague Rules shall apply as a matter of contract; or

(b) if the loss or damage is known to have occurred during any inland carriage not in the U.S. in accordance with the contract of carriage or tariffs of any inland carrier in whose custody the loss or damage occurred or in accordance with clauses 6.1 and clause 7.2(a), whichever imposes lesser liability on the Carrier; or

(c) if the loss or damage is known to have occurred during Carriage by sea, for shipments to or from the United States of America, or waterborne Carriage in the United States of America or Carriage to or from a container yard or container freight station at Port of Loading before loading on the carrying vessel or at the Port of Discharge before delivery to the inland carrier, by the provisions of U.S. COGSA; or

(d) if the loss or damage is known to have occurred during any inland carriage in the U.S., in accordance with the contract of carriage or tariffs of any inland carrier in whose custody the loss or damage occurred or U.S. COGSA whichever imposes lesser liability on the Carrier.

7. Compensation and Liability Provisions

7.1 Subject always to the Carrier's right to limit liability as provided for herein, if the Carrier is liable for compensation in respect of loss of or damage to the Goods, such compensation shall be calculated by reference to the value of the Goods plus Freight and insurance if paid. The value of the Goods shall be determined with reference to the commercial invoice, customs declaration, any prevailing market price (at the place and time they are delivered or should have been delivered), production price or the reasonable value of goods of the same kind and/or quality.

7.2 Save as is provided in clause 7.3:

(a) the Carrier's liability shall in no event exceed 2 SDR per kilo of the gross weight of the Goods lost, damaged or in respect of which a claim of whatsoever nature arises unless clause 7.2(b) applies;

(b) for shipments to or from the U.S., the liability of the Carrier and/or Vessel shall not exceed USD 500 per Package or customary freight unit, or any lesser limitation afforded per Clause 6.2.

7.3 The Merchant agrees and acknowledges that the Carrier has no knowledge of the value of the Goods and higher compensation than that provided for in this bill of lading may be claimed only when, with the consent of the Carrier, (i) for multimodal shipments from the U.S. where U.S. inland carriage is undertaken, the Merchant elects to avoid any liability limitation provided herein by prepaying extra freight and opting for full liability under the Carmack Amendment by complying with the terms in Carrier's Tariff; and (ii) in all other cases, the Shipper declares and the Carrier states the value of the Goods declared by the Shipper upon delivery to the Carrier has been stated in the box marked "Declared Value" on the reverse of this bill of lading and extra freight paid. In that case, the amount of the declared value shall be substituted for the limits laid down in this bill of lading. Any partial loss or damage shall be adjusted pro rata on the basis of such declared value.

7.4 Nothing in this bill of lading shall operate to limit or deprive the Carrier of any statutory protection, defence, exception or limitation of liability authorised by any applicable laws, statutes or regulations of any country. The Carrier shall have the benefit of the said laws, statutes or regulations as if it were the owner of any carrying Vessel.

8. General

8.1 The Carrier does not undertake that the Goods or any documents relating thereto shall arrive or be available at any point or place at any stage during the Carriage or at the Port of Discharge or the Place of Delivery at any particular time or to meet any particular requirement of any licence, permission, sale contract, or credit of the Merchant or any market or use of the Goods and the Carrier shall under no circumstances whatsoever and howsoever arising be liable for any direct, indirect or consequential loss or damage caused by delay. If the Carrier should nevertheless be held legally liable for any such direct or indirect or consequential loss or damage caused by delay, such liability shall in no event exceed the Freight paid.

8.2 Save as is otherwise provided herein, the Carrier shall in no circumstances be liable for direct or indirect or consequential loss or damage arising from any other cause whatsoever or for loss of profits.

8.3 Once the Goods have been received by the Carrier for Carriage the Merchant shall not be entitled neither to impede, delay, suspend or stop or otherwise interfere with the Carrier's intended manner of performance of the Carriage or the exercise of the liberties conferred by this bill of lading nor to instruct or require delivery of the Goods at other Port or Place than the Port of Discharge or Place of Delivery named on the reverse hereof or such other Port or Place selected by the Carrier in the exercise of the liberties herein, for any reason whatsoever. The Merchant shall indemnify the Carrier against all claims, liabilities, losses, damages, costs, delays, attorney fees and/or expenses caused to the Carrier, his Subcontractors, servants or agents or to any other cargo or to the owner of such cargo during the Carriage arising or resulting from any impediment, delay, suspension, stoppage or interference whatsoever in the Carriage of the Goods.

9. Notice of Loss, Time Bar

Unless notice of loss or damage and the general nature of such loss or damage be given in writing to the Carrier or his agents at the Place of Delivery (or Port of Discharge if no Place of Delivery is named on the reverse hereof) before or at the time of removal of the Goods or if the loss or damage is not apparent within three days thereafter, such removal shall be prima facie evidence of the delivery by the Carrier of the Goods as described in this bill of lading. In any event, the Carrier shall be discharged from all liability whatsoever in respect of the Goods unless suit is brought within one year after their delivery or the date when they should have been delivered.

10. Application of Terms and Conditions

These Terms and Conditions shall apply in any action against the Carrier for any loss or damage whatsoever and howsoever occurring (and, without restricting the generality of the foregoing, including delay, late delivery and/or delivery without surrender of this bill of lading) and whether the action be founded in contract, bailment or in tort and even if the loss, damage or delay arose as a result of unseaworthiness, negligence or fundamental breach of contract.

11. Shipper-Packed Containers

If a Container has not been packed by the Carrier:

11.1 This bill of lading shall be a receipt only for such a Container;

11.2 The Carrier shall not be liable for loss of or damage to the contents and the Merchant shall indemnify the Carrier against any injury, loss, damage, liability or expense whatsoever incurred by the Carrier if such loss of or damage to the contents and/or such injury, loss, damage, liability or expense has been caused by any matter beyond his control including, inter alia, without prejudice to the generality of this exclusion:

- (a) the manner in which the Container has been packed; or
- (b) the unsuitability of the Goods for carriage in Containers; or
- (c) the unsuitability or defective condition of the Container; or
- (d) the incorrect setting of any thermostatic, ventilation, or other special controls thereof, provided that, if the Container has been supplied by the Carrier, this unsuitability or defective condition could have been apparent upon reasonable inspection by the Merchant at or prior to the time the Container was packed.

11.3 The Merchant is responsible for the packing and sealing of all shipper packed Containers and, if a shipper packed Container is delivered by the Carrier with any original seal intact, the Carrier shall not be liable for any shortage of Goods ascertained at delivery.

11.4 The Shipper shall inspect Containers before packing them and the use of Containers shall be prima facie evidence of their being sound and suitable for use.

12. Perishable Cargo

12.1 Goods, including Goods of a perishable nature, shall be carried in ordinary Containers without special protection, services or other measures unless there is noted on the reverse side of this bill of lading that the Goods will be carried in a refrigerated, heated, electrically ventilated or otherwise specifically equipped Container or are to receive special attention in any way. The Merchant undertakes not to tender for Carriage any Goods which require refrigeration, ventilation or any other specialised attention without giving written notice of their nature and the required temperature or other setting of the thermostatic, ventilation or other special controls. If the above requirements are not complied with, the Carrier shall not be liable for any loss of or damage to the Goods howsoever arising.

(a) to freeze down cargo which has not been presented for stuffing at or below its designated carrying temperature and the Carrier shall not be responsible for the consequences of cargo being presented at a higher temperature than that required for the Carriage; nor

(b) to monitor and control humidity levels, albeit a setting facility exists, in that humidity is influenced by many external factors and the Carrier does not guarantee the maintenance of any intended level of humidity inside any Container.

12.3 The term "apparent good order and condition" when used in this bill of lading with reference to goods which require refrigeration, ventilation or other specialised attention does not mean that the Goods, when received, were verified by the Carrier as being at the carrying temperature, humidity level or other condition designated by the Merchant.

12.4 The Carrier shall not be liable for any loss of or damage to the Goods arising from latent defects, derangement, breakdown, defrosting, stoppage of the refrigerating, ventilating or any other specialised machinery, plant, insulation and/or apparatus of the Container, Vessel, conveyance and any other facilities, provided that the Carrier shall before and at the beginning of the Carriage exercise due diligence to maintain the Container supplied by the Carrier in an efficient state.

13. Inspection of Goods

The Carrier shall be entitled, but under no obligation, to open and/or scan any package or Container at any time and to inspect the contents. If it appears at any time that the Goods cannot safely or properly be carried or carried further, either at all or without incurring any additional expense or taking any measures in relation to the Container or the Goods, the Carrier may without notice to the Merchant (but as his agent only) take any measures and/or incur any reasonable additional expense to carry or to continue the Carriage thereof, and/or to sell or dispose of the Goods and/or to abandon the Carriage and/or to store them ashore or afloat, under cover or in the open, at any place, whichever the Carrier in his absolute discretion considers most appropriate, which sale, disposal, abandonment or storage shall be deemed to constitute due delivery under this bill of lading. The Merchant shall indemnify the Carrier against any reasonable additional expense so incurred. The Carrier in exercising the liberties contained in this clause shall not be under any obligation to take any particular measures and shall not be liable for any loss, delay or damage howsoever arising from any action or lack of action under this clause.

14. Description of Goods

14.1 This bill of lading shall be prima facie evidence of the receipt by the Carrier in apparent good order and condition, except as otherwise noted, of the total number of Containers or other packages or units indicated in the box entitled "Carrier's Receipt" on the reverse side hereof.

14.2 No representation is made by the Carrier as to the weight, contents, measure, quantity, quality, description, condition, marks, numbers or value of the Goods and the Carrier shall be under no responsibility whatsoever in respect of such description or particulars.

14.3 The Shipper warrants to the Carrier that the particulars relating to the Goods as set out on the reverse hereof have been checked by the Shipper on receipt of this bill of lading and that such particulars, and any other particulars furnished by or on behalf of the Shipper, are adequate and correct. The Shipper also warrants that the Goods are lawful goods, and contain no contraband, drugs or other illegal substances or stowaways, and that the Goods will not cause loss, damage or expense to the Carrier, or to any other cargo.

14.4 If any particulars of any letter of credit and/or import license and/or sales contract and/or invoice or order number and/or details of any contract to which the Carrier is not a party are shown on the face of this bill of lading, such particulars are included at the sole risk of the Merchant and for his convenience. The Merchant agrees that the inclusion of such particulars shall not be regarded as a declaration of value and in no way increases Carrier's liability under this bill of lading.

15. Merchant's Responsibility

15.1 All of the Persons coming within the definition of Merchant in clause 1, including any principal of such Person, shall be jointly and severally liable to the Carrier for the due fulfilment of all obligations undertaken by the Merchant in this bill of lading.

15.2 The Merchant shall be liable for and shall indemnify the Carrier against all loss, damage, delay, fines, attorney fees and/or expenses arising from any breach of any of the warranties in clause 14.3 or elsewhere in this bill of lading and from any other cause whatsoever in connection with the Goods for which the Carrier is not responsible.

15.3 The Merchant shall comply with all regulations or requirements of customs, port and other authorities, and shall bear and pay all duties, taxes, fines, imposts, expenses or losses (including, without prejudice to the generality of the foregoing Freight for any additional Carriage undertaken) incurred or suffered by reason of any failure to so comply, or by reason of any illegal, incorrect or insufficient declaration, marking, numbering or addressing of the Goods, and shall indemnify the Carrier in respect thereof.

15.4 If Containers supplied by or on behalf of the Carrier are unpacked by or for the Merchant, the Merchant is responsible for returning the empty Containers, with interiors clean, odour free and in the same condition as received, to the point or place designated by the Carrier, within the time prescribed. Should a Container not be returned in the condition required and/or within the time prescribed in the Tariff, the Merchant shall be liable for any detention, loss or expense incurred as a result thereof.

15.5 Containers released into the care of the Merchant for packing, unpacking or any other purpose whatsoever are at the sole risk of the Merchant until redelivered to the Carrier. The Merchant shall indemnify the Carrier for all loss of and/or damage and/or delay to such Containers, and all liability claims from third parties or costs or fines resulting from Merchant's use of such Containers. Merchants are deemed to be aware of the dimensions and capacity of any Containers released to them.

16. Freight Expenses and Fees

16.1 Full Freight shall be payable based on particulars furnished by or on behalf of the Shipper. The Carrier may at any time open the Goods or Container(s) and, if the Shipper's particulars are incorrect the Merchant and the Goods shall be liable for the correct Freight and any expenses incurred in examining, weighing, measuring, or valuing the Goods.

16.2 Full Freight shall be considered completely earned on receipt of the Goods by the Carrier and shall be paid and non returnable in any event.

16.3 All sums payable to the Carrier are due on demand and shall be paid in full in United States currency or, at the Carrier's option, in its equivalent in the currency of the Port of Loading or of Discharge or the Place of Receipt or of Delivery or as specified in the Carrier's Tariff.

16.4 The Merchant's attention is drawn to the stipulations concerning currency in which the Freight is to be paid, rate of exchange, devaluation, additional insurance premium and other contingencies relative to Freight in the applicable Tariff. In the event of any discrepancy between Freight (incl. charges etc) items in the bill of lading and any Carrier invoices, the latter shall prevail.

16.5 All Freight shall be paid without any set off, counter claim, deduction or stay of execution at latest before delivery of the Goods.

16.6 If the Merchant fails to pay the Freight when due he shall be liable also for payment of service fee, interest due on any outstanding and/or overdue sum reasonable attorney fees and expenses incurred in collecting any sums due to the Carrier. Payment of Freight and charges to a freight forwarder, broker or anyone other than the Carrier or its authorised agent, shall not be deemed payment to the Carrier and shall be made at the Merchant's sole risk.

16.7 Despite the acceptance by the Carrier of instructions to collect Freight, duties, fees, demurrage/detention and costs and expenses from the shipper or consignee or any other Person, then, in the absence of evidence of payment (for whatever reason) by such shipper or consignee or other Person when due, the Merchant shall remain responsible for and for the payment of such Freight, duties, fees, demurrage/detention and costs and expenses on receipt of evidence of demand within the meaning of clause 16.3.

16.8 If the Carrier, at its sole discretion, grants credit on any sums payable to the Carrier, the terms and conditions applicable to any credit (Credit terms) are available from the Carrier or his authorised agents or at <https://terms.maerskline.com/credit>. The applicable Credit terms will automatically apply to any granting of credit by the Carrier, unless otherwise agreed by the Carrier.

17. Lien

The Carrier shall have a lien on the Goods and any documents relating thereto for all sums payable to the Carrier under this contract and for general average contributions to whomsoever due. The Carrier shall also have a lien against the Merchant on the Goods and any document relating thereto for all sums due by the Merchant to the Carrier under any other contract whether or not related to this Carriage. The Carrier may exercise his lien at any time and any place in his sole discretion, whether the contractual Carriage is completed or not. In any event any lien shall extend to cover the cost of recovering any sums due and for that purpose the Carrier shall have the right to sell the Goods by public auction or private treaty, without notice to the Merchant. The Carrier's lien shall survive delivery of the Goods.

18. Optional Stowage, Deck Cargo and Livestock

18.1 The Goods may be packed by the Carrier in Containers and consolidated with other goods in Containers.

18.2 Goods whether packed in Containers or not, may be carried on deck or under deck without notice to the Merchant. The Carrier shall not be required to note, mark or stamp on the bill of lading any statement of such on deck carriage. Save as provided in clause 18.3, such Goods (except livestock) carried on or under deck and whether or not stated to be carried on deck shall participate in general average and shall be deemed to be within the definition of goods for the purpose of the Hague Rules or US COGSA and shall be carried subject to such Rules or Act, whichever is applicable.

18.3 Goods (not being Goods stowed in Containers other than flats or pallets) which are stated herein to be carried on deck and livestock, whether or not carried on deck, are carried without responsibility on the part of the Carrier for loss or damage of whatsoever nature or delay arising during the Carriage whether caused by unseaworthiness or negligence or any other cause whatsoever and neither the Hague Rules nor US COGSA shall apply.

19. Methods and Routes of Carriage

19.1 The Carrier may at any time and without notice to the Merchant:

- (a) use any means of transport or storage whatsoever;
- (b) transfer the Goods from one conveyance to another including transshipping or carrying the same on a Vessel other than the Vessel named on the reverse hereof or by any other means of transport whatsoever and even though transshipment or forwarding of the Goods may not have been contemplated or provided for herein;
- (c) unpack and remove the Goods which have been packed into a Container and forward them via Container or otherwise;
- (d) sail without pilots, proceed via any route, (whether or not the nearest or most direct or customary or advertised route) at any speed and proceed to, return to and stay at any port or place whatsoever (including the Port of Loading herein provided) once or more often, and in any order in or out of the route or in a contrary direction to or beyond the port of discharge once or more often;
- (e) load and unload the Goods at any place or port (whether or not any such port is named on the reverse hereof as the Port of Loading or Port of Discharge) and store the Goods at any such port or place;
- (f) comply with any orders or recommendations given by any government or authority or any Person or body acting purporting to act as or on behalf of such government or authority or having under the terms of the insurance on any conveyance employed by the Carrier the right to give orders or directions.

19.2 The liberties set out in clause 19.1 may be invoked by the Carrier for any purpose whatsoever whether or not connected with the Carriage of the Goods, including but not limited to loading or unloading other goods, bunkering or embarking or disembarking any person(s), undergoing repairs and/or drydocking, towing or being towed, assisting other vessels, making trial trips and adjusting instruments. Anything done or not done in accordance with clause 19.1 or any delay arising therefrom shall be deemed to be within the contractual Carriage and shall not be a deviation.

20. Matters Affecting Performance

If at any time Carriage is or is likely to be affected by any hindrance, risk, danger, delay, difficulty or disadvantage of whatsoever kind and howsoever arising which cannot be avoided by the exercise of reasonable endeavours, (even though the circumstances giving rise to such hindrance, risk, danger, delay, difficulty or disadvantage existed at the time this contract was entered into or the Goods were received for Carriage) the Carrier may at his sole discretion and without notice to the Merchant and whether or not the Carriage is commenced either:

(a) Carry the Goods to the contracted Port of Discharge or Place of Delivery, whichever is applicable, by an alternative route to that indicated in this bill of lading or that which is usual for Goods consigned to that Port of Discharge or Place of Delivery. If the Carrier elects to invoke the terms of this clause 20(a) then, notwithstanding the provisions of clause 19 hereof, he shall be entitled to charge such additional Freight as the Carrier may determine; or

(b) Suspend the Carriage of the Goods and store them ashore or afloat under these Terms and Conditions and endeavour to forward them as soon as possible, but the Carrier makes no representations as to the maximum period of suspension. If the Carrier elects to invoke the terms of this clause 20(b) then, notwithstanding the provisions of clause 19 hereof, he shall be entitled to charge such additional Freight and costs as the Carrier may determine; or

(c) Abandon the Carriage of the Goods and place them at the Merchant's disposal at any place or port, which the Carrier may deem safe and convenient, whereupon the responsibility of the Carrier in respect of such Goods shall cease. The Carrier shall nevertheless be entitled to full Freight on the Goods received for the Carriage, and the Merchant shall pay any additional costs incurred by reason of the abandonment of the Goods. If the Carrier elects to use an alternative route under clause 20(a) or to suspend the Carriage under clause 20(b) this shall not prejudice his right subsequently to abandon the Carriage.

21. Dangerous Goods

21.1 No Goods which are or which may become of a dangerous, noxious, hazardous, flammable, or damaging nature (including radioactive material) or which are or may become liable to damage any Persons or property whatsoever, and whether or not so listed in any official or unofficial, international or national code, convention, listing or table shall be tendered to the Carrier for Carriage without previously giving written notice of their nature, character, name, label and classification (if applicable) to the Carrier and obtaining his consent in writing and without distinctly marking the Goods and the Container or other covering on the outside so as to indicate the nature and character of any such Goods and so as to comply with any applicable laws, regulations or requirements. If any such Goods are delivered to the Carrier without obtaining his consent and/or such marking, or if in the opinion of the Carrier the Goods are or are liable to become of a dangerous, noxious, hazardous, flammable or damaging nature, they may at any time or place be unloaded, destroyed, disposed of, abandoned or rendered harmless without compensation to the Merchant and without prejudice to the Carrier's right to Freight.

21.2 The Merchant warrants that such Goods are packed in a manner adequate to withstand the risks of Carriage having regard to their nature and in compliance with all laws, regulations or requirements which may be applicable to the Carriage.

21.3 The Merchant shall indemnify the Carrier against all claims, liabilities, loss, damage, delay, costs, fines and/or expenses arising in consequence of the Carriage of such Goods, and/or arising from breach of any of the warranties in clause 21.2 including any steps taken by the Carrier pursuant to clause 21.1 whether or not the Merchant was aware of the nature of such Goods.

21.4 Nothing contained in this clause shall deprive the Carrier of any of his rights provided for elsewhere.

22. Notification, Discharge and Delivery

22.1 Any mention in this bill of lading of parties to be notified of the arrival of the Goods is solely for information of the Carrier. Failure to give such notification shall not involve the Carrier in any liability nor relieve the Merchant of any obligation hereunder.

22.2 The Merchant shall take delivery of the Goods within the time provided for in the Carrier's applicable Tariff. If the Merchant fails to do so, the Carrier may without notice unpack the Goods if packed in containers and/or store the Goods ashore, afloat, in the open or under cover at the sole risk of the Merchant. Such storage shall constitute due delivery hereunder, and thereupon all liability whatsoever of the Carrier in respect of the Goods or that part thereof shall cease and the costs of such storage shall forthwith upon demand be paid by the Merchant to the Carrier.

22.3 If the Carrier is obliged to discharge the Goods into the hands of any customs, port or other authority, such discharge shall constitute due delivery of the Goods to the Merchant under this bill of lading.

22.4 If the Goods are unclaimed within a reasonable time or whenever in the Carrier's opinion the Goods are likely to deteriorate, decay or become worthless, or incur charges whether for storage or otherwise in excess of their value, the Carrier may at his discretion and without prejudice to any other rights which he may have against the Merchant, without notice and without any responsibility attaching to him sell, abandon or otherwise dispose of the Goods at the sole risk and expense of the Merchant and apply any proceeds of sale in reduction of the sums due to the Carrier by the Merchant.

22.5 Refusal by the Merchant to take delivery of the Goods in accordance with the terms of this clause and/or to mitigate any loss or damage thereto shall constitute a waiver by the Merchant to the Carrier of any claim whatsoever relating to the Goods or the Carriage thereof.

23. Both to Blame Collision Clause

The Both to Blame Collision and New Jason clauses published and/or approved by BIMCO and obtainable from the Carrier or his agent upon request are hereby incorporated herein.

24. General Average and Salvage

24.1 General average to be adjusted at any port or place at the Carrier's option and to be settled according to the York Antwerp Rules 1994, this covering all Goods carried on or under deck. General average on a Vessel not operated by the Carrier shall be adjusted according to the requirements of the operator of that Vessel.

24.2 Such security including a cash deposit as the Carrier may deem sufficient to cover the estimated contribution of the Goods and any salvage and special charges thereon, shall, if required, be submitted to the Carrier prior to delivery of the Goods. The Carrier shall be under no obligation to exercise any lien for general average contribution due to the Merchant.

24.3 Should the Carrier in its own discretion choose to post general average and/or salvage security due from cargo interests or pay general average and/or salvage contributions due from cargo interests, the Merchant hereby assigns to the Carrier all his rights in respect of the general average and/or salvage.

24.4 If a salving ship is owned or operated by the Carrier, salvage shall be paid for as fully as if the said salving ship belonged to strangers.

25. Variation of the Contract and Validity

25.1 No servant or agent of the Carrier shall have the power to waive or vary any Terms and Conditions unless such waiver or variation is in writing and is specifically authorised or ratified in writing by the Carrier.

25.2 In the event that anything herein contained is inconsistent with any applicable international convention or national law, which cannot be departed from by private contract, the provisions hereof shall to the extent of such inconsistency but no further be null and void.

26. Law and Jurisdiction

For shipments to or from the U.S. any dispute relating to this bill of lading shall be governed by U.S. law and the United States Federal Court of the Southern District of New York is to have exclusive jurisdiction to hear all disputes in respect thereof. In all other cases, this bill of lading shall be governed by and construed in accordance with English law and all disputes arising hereunder shall be determined by the English High Court of Justice in London to the exclusion of the jurisdiction of the courts of another country. Alternatively and at the Carrier's sole option, the Carrier may commence proceedings against the Merchant at a competent court of a place of business of the Merchant.

Maersk Line © 2015

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MAERSK LINE A/S,

Plaintiff,

19-cv-4870 (JGK)

- against -

ORDER

MARIE S. CAREW, trading as
HOLIDAY SHIPPING,

Defendant.

JOHN G. KOELTL, District Judge:

For the reasons stated on the record at the conference on July 27, 2020, the plaintiff's motion for summary judgment is denied without prejudice and the defendant's motion to dismiss is denied without prejudice. This case is referred to Magistrate Judge Wang for settlement. The parties should report to the Court within seven days after the conclusion of settlement discussions with the Magistrate Judge.

The plaintiff should file her updated contact information on the docket, including a telephone and email address. If the defendant wishes to have Mr. Omole continue to represent her, Mr. Omole should file a motion for admission pro hac vice and a notice of appearance, after which the defendant will no longer be pro se.

The Clerk is directed to close Dkt. Nos. 14, 20, and 27.
Chambers will mail a copy of this Order to the pro se defendant
at the address listed on the docket.

SO ORDERED.

**Dated: New York, New York
July 27, 2020**

/s/ John G. Koeltl
John G. Koeltl
United States District Judge

Edward A. Keane*
Garth S. Wolfson*

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+Also admitted in CT

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November 16, 2020

VIA ECF

Hon. John P. Cronan
United States District Judge
United States District Court
Southern District of New York
500 Pearl Street
New York, New York 10007

Re: **Case No. 19 Civ. 4870 (JPC)**
Maersk Line A/S v.
Marie S. Carew t/a Holiday Shipping
Our File No. 12/4479

Honorable Sir,

We represent the Plaintiff, MAERSK LINE A/S (“MAERSK”), in the above-referenced action and, pursuant to Your Honor’s Individual Rules and Practice, write to request the conference precedent to moving, pursuant to Rule 15(a)(2) of the Federal Rules of Civil Procedure, for leave to file an Amended Complaint. True copies of the Proposed Amended Complaint both with the changes tracked and without, are herewith attached as Exhibits 1 and 2, respectively.

The reason for the proposed amendment is that MAERSK has agreed to dismiss its claims under four of the 79 bills of lading allegedly breached in this case, to wit: those bills of lading numbered 965477262, 96544009, 965751148, and 965885829. This would result in a \$26,712.74 reduction of the *ad damnum* (from \$173,025.74 to \$146,313.00). Other than removing the four bills of lading and reducing the amount claimed, there would be no substantive changes to the pleading.

Nonetheless, the *pro se* Defendant, MARIE S. CAREW t/a HOLIDAY SHIPPING (“HOLIDAY”), through her Georgia counsel, has declined to stipulate to the proposed amendment. The undersigned has been given no comprehensible reason why HOLIDAY’s consent is being withheld. However, that is why we regret the instant application has become necessary.

Again, we thank the Court for its consideration.

Respectfully submitted,

MAHONEY & KEANE, LLP

By: s/ Garth S. Wolfson
Garth S. Wolfson

cc (via e-mail and via mail):

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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

USDC SDNY
DOCUMENT
ELECTRONICALLY FILED
DOC #:
DATE FILED: 11/19/2020

-----X
MAERSK LINE A/S,

Plaintiff,

-v-

MARIE S. CAREW, *trading as* HOLIDAY SHIPPING,

Defendant.
-----X

19-CV-4870 (JPC) (OTW)

ORDER

JOHN P. CRONAN, United States District Judge:

The Court has reviewed Plaintiff's letter, dated November 16, 2020, requesting a pre-motion conference in anticipation of their Rule 15(a)(2) motion for leave to file an Amended Complaint (Dkt. 37) and the parties' joint status letter dated November 2, 2020 (Dkt. 36). The status letter states that although Defendant is proceeding *pro se*, "[s]he is assisted by Yinka Omole, an attorney duly admitted to practice in Georgia . . . [W]hile no motion for admission *pro hac vice* [h]as yet been submitted, the parties have agreed to e-mail service of papers" (Dkt. 36). The Court hereby orders that the parties and Mr. Omole appear before the undersigned for a pre-motion conference on December 11, 2020, at 4:00 p.m. The Court will discuss Defendant's representation and issues raised by the November 16, 2020 letter. Unless the Court directs otherwise, the Court plans to conduct the conference by teleconference. At the scheduled time, all parties should call (866) 434-5269, access code 9176261.

The Clerk of the Court is respectfully directed to mail a copy of this order to the *pro se* Defendant.

SO ORDERED.

Dated: November 19, 2020
New York, New York



JOHN P. CRONAN
United States District Judge